

(2) Discretionary Preference under CCP § 36(e)

Plaintiffs alternatively seek preference under CCP section 36(e), which permits the Court to grant preference upon a showing that the interests of justice will be served. Under this provision, the decision rests in the discretion of the Court in light of the totality of the circumstances. (Salas, supra, 42 Cal.3d at 344.) Unlike section 36(a), the analysis under section 36(e) may take into consideration the interests of opposing parties.

Trial preference under CCP section 36(e) is denied. Plaintiffs rely on Mr. Medak's age and medical condition, Ms. Philbin's approaching seventieth birthday, and the fact that the Property has been uninhabitable for over two years. The Court acknowledges the hardship of prolonged displacement. However, the underlying health showing under section 36(e) rests on the same evidence the Court has found insufficient under section 36(a). Ms. Philbin's approaching seventieth birthday adds little to the analysis. The uninhabitability of the Property is a consequence of the alleged wrongdoing for which Plaintiffs seek damages, and is better addressed through the ordinary course of litigation rather than by accelerating trial.

The Court also considers the prejudice raised by Rodriguez Drywall, Inc. and Insul-Techs with respect to Sigura's indemnity cross-claims. Rodriguez appeared in the case on February 11, 2026, and Insul-Techs on December 16, 2025. Both parties state that they have not completed discovery, that their experts require time to evaluate the Property and damages, and that a trial within 120 days would prevent them from bringing pretrial, dispositive motions. Such prejudice would be irrelevant under section 36(a). But under section 36(e), the Court must consider the totality of circumstances and this prejudice is part of that consideration.

Plaintiffs argue in their moving papers that Sigura's indemnity cross-claims can be tried separately from the main case. (MPA, p. 5:4-5.) Severance under CCP section 1048(b) might address the concerns raised by Cross-Defendants, but severance is not before the Court absent a noticed motion that gives all interested parties an opportunity to respond. The Court therefore does not consider severance as part of the section 36(e) analysis.

The interests of justice do not warrant trial preference on this record. Accordingly, the motion is denied under section 36(e), without prejudice.

Disposition

For the reasons stated, Plaintiffs' motion is **denied without prejudice**.

15. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***HEARING ON MOTION IN RE: COMPEL ARBITRATION CONTINUED FROM 01.29.26 HEARING**
FILED BY:
TENTATIVE RULING:

Please see Line 16.